**Thank You for Choosing Shadeotech!**

We truly appreciate your business and the opportunity to serve you. At Shadeotech, we believe in transparency, we hate surprises as much as you do. Please take a moment to carefully review the following agreement to ensure everything goes smoothly with your project. Please review the estimate thoroughly to ensure the accuracy of the selected fabric model number and details such as mount type, motor, window style, and cord specifications. Changes or refunds are not permitted after the order has been approved and placed. The client acknowledges that they have thoroughly reviewed the quote and confirmed that all information is correct. Any modifications requested after order approval must be submitted in writing and may require a revised invoice, updated timeline, and additional charges.

**Payment Terms** To initiate the manufacturing process, a down payment equal to fifty percent (50%) of the total purchase price is required. This payment is due upon order placement. The remaining balance must be paid in full prior to the delivery or installation of the products. Payments can be made via check, Zelle transfer, or credit card. Payments via check should be made out to "SHADEOTECH." Zelle transfers should be directed to info@shadeotech.com. Please note that payments made by credit card will incur a surcharge of three percent (3%) of the total transaction amount. Financing will incur a ten percent (10%) charge that the financing provider charges on top of the invoice total. All sales are final and non-refundable. By placing an order, the client agrees that they have reviewed and accepted all product specifications, designs, and dimensions. SHADEOTECH is not liable for any discrepancies once the order has been confirmed by the client. The client agrees that any disputes regarding payment will be resolved amicably and in good faith between both parties. However, the client also agrees to waive their right to withhold payment or initiate a chargeback or payment dispute with their bank or credit card provider. Failure to adhere to the agreed payment terms may result in legal action to recover the outstanding balance, including any additional costs incurred by SHADEOTECH in the process of collection, including but not limited to legal fees. If a client places an order that requires multiple phases and multiple invoices, any unpaid invoices will void the warranty on all products and services provided. Additionally, no installation will occur until all balances are settled in full. This payment is due upon order placement. The remaining balance must be paid in full prior to the delivery or installation of the products.

*I understand that my balance must be paid in full prior to the scheduled installation date. If full payment is not received before installation, a late fee of $75 per day will apply until the outstanding balance is settled. If I have proceeded with financing, I acknowledge that the financing provider operates under its own terms and conditions. I further understand that all of Shadeotech's approved financing providers apply a 10% financing fee, which is separate from and in addition to any fees or terms provided by the financing company.*

**Multiple Invoices** For projects with multiple invoices—such as different phases for interior and exterior installations or sections broken into multiple parts—you must settle the balance for each phase before we can proceed to the next stage. We reserve the right to not proceed with subsequent phases if your previous payments were late.

**Late Payment** If the full payment is not made by the time of installation, a late payment fee of $75 per day will be applied starting from the date of installation until the outstanding balance is settled in full. The

customer acknowledges and agrees that the company reserves the right to withhold services or delay installation until the balance is cleared. Additionally, if there is any outstanding balance after the installation is complete, the warranty will be void. If any invoice remains unpaid beyond the due date and Shadeotech is required to initiate collection efforts, the client agrees to be responsible for all costs associated with the recovery of the outstanding balance. This includes, but is not limited to, collection agency fees, attorney fees, court costs, and interest on the unpaid balance at the maximum rate permitted by Texas law. These fees will be added to the total amount due and are enforceable under this agreement.

**Electrical Work** Any electrical work required for the installation or operation of Shadeotech products is the sole responsibility of the client. Shadeotech does not perform electrical work and is not licensed or authorized to do so. We are not liable for any damages, malfunctions, or safety issues resulting from electrical work performed by a third-party electrician or by the client themselves. We have no control over the color of wires provided with motors or chargers, as these are standard from the manufacturer and cannot be customized. Shadeotech does not paint or alter any electrical components. If a client chooses to use an extension cord or any alternative power setup that does not involve directly plugging the shade into a standard outlet, all responsibility for performance, safety, and compliance lies with the homeowner. All costs related to third-party electrical services are the sole responsibility of the client, and Shadeotech shall not be held liable for any issues arising from such services.

**Aluminum Components** By default, roller shades will come with a steel beaded chain. If you prefer a white or black plastic chain, you must specify this at the time of ordering. However, we do not recommend plastic chains as they are less durable. All other shades will have color-coordinated cords. Both chains and cords are custom-cut to match the length of each window for a precise fit. By law, all chains and cords must be securely screwed to the wall for safety compliance. If you choose not to have them secured, you may sign a waiver acknowledging the risks.

**Solar Panel Obstruction Policy** If any obstruction (e.g., furniture, fixtures, new construction, landscaping, screens, or structural changes) appears in front of a solar panel after installation, and repositioning is required, a trip charge will apply to move the solar panel to an alternative position. Additionally, the Customer acknowledges that solar-powered motors rely entirely on adequate sunlight exposure to maintain battery charge. Shadeotech is not responsible for reduced performance or charging issues caused by insufficient sunlight, improper panel orientation, shaded window placement, weather conditions, or seasonal changes in sun intensity and angle. Shadeotech does not control the availability of sunlight or environmental conditions affecting solar charging.

**Smart Hub & Timer Configuration** For security reasons, Shadeotech will not program or configure any smart hubs that are connected to a customer's WiFi network. Customers are responsible for programming and managing their own smart hubs to ensure the security of their network and devices. If the client has a remote with a timer function, Shadeotech will not configure the timer. Shadeotech is not responsible for any issues, disruptions, malfunctions, or loss of functionality caused by third-party applications, firmware updates, platform outages, WiFi/router changes, or compatibility limitations. This includes, but is not limited to, apps such as Bond, Somfy, Tuya, Amazon Alexa, Google Home, Apple HomeKit, or any other external smart control system. If the Customer experiences problems related to a third-party app or smart platform, the Customer agrees that they must contact the third-party provider directly for troubleshooting and support. Shadeotech shall not be liable for service calls, reprogramming, or operational issues arising from third-party software or systems outside of Shadeotech’s control.

**Exterior Shades** Exterior shades require a flat surface for the track to be installed. If the surface has stonework, Shadeotech may need to shave or fill gaps with foam for proper installation. Shadeotech is not responsible for any resulting aesthetic issues or modifications required to accommodate installation. Patios are often sloped for drainage purposes; as a result, Shadeotech is not responsible if the bottom of the shade does not provide complete coverage. If an exterior shade is installed in a way that deviates from Shadeotech's professional recommendations, or if exterior shades are left down during extreme weather conditions, such as high winds, freezing rain, hail, or any weather conditions that trigger official weather alerts, and the zipper or other components become damaged, SHADEOTECH will not be responsible, and the warranty will not cover the repairs or replacements.Shadeotech is not responsible for any resulting issues, including but not limited to shade malfunction, improper function, or detachment. Any warranty for such installations will be void.

**Wall and Slope Deviations** Patio walls and floors are often uneven or sloped, which may cause one side to sit higher than the other. As a result, fabric may not hang perfectly straight. Shadeotech is not responsible for these deviations, as they are inherent to the structure. During installation, we may make small alterations such as shaving edges or notching wood to allow proper fitting. Any work beyond minor adjustments (including masonry or structural modifications) is the sole responsibility of the client and not included in Shadeotech's services.

**Remote & Programming Policy** If a remote is damaged, dropped, exposed to moisture, or tampered with in any way, including alterations to the programming, the product warranty will be void. This includes any instances where the client opens the shade motor housing, interferes with wiring, or attempts reprogramming without Shadeotech's guidance. Clients are advised not to make any changes to the remote settings or motor configurations after installation. Any service required to correct issues caused by such tampering will incur a trip charge starting at $125, plus the cost of repair or replacement.

**Battery Maintenance Requirement** The Client agrees to charge each rechargeable battery motor using the charger provided by Shadeotech at least once every six (6) months, regardless of whether the motor has been in use. This requirement is necessary to maintain optimal battery health and performance. Failure to follow this maintenance requirement may void the warranty on the motor and battery.

**Timeline** The delivery timeframe for your shades can range from 2 days to 8 weeks, depending on the product and fabric selected, or as indicated by your consultant. While we strive to complete deliveries within 4 weeks from acceptance of the contract and initial payment, unforeseen circumstances may occasionally lead to delays. Shadeotech shall not be held liable for delays in product delivery due to

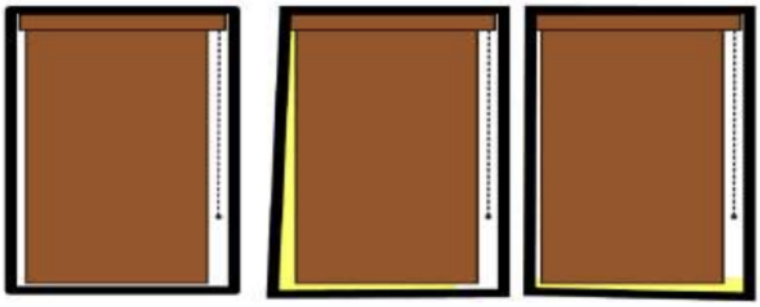
circumstances beyond its control, including but not limited to, natural disasters, transportation disruptions, or supplier delays.

**Warranty** We offer a limited lifetime warranty on our products, which means your warranty is valid as long as you reside in your house. Warranty registration is required on our website at https://shadeotech.com/warranty-registration/. Warranty registrations must be completed within 30 days of installation. Motors have a 5-year warranty, and the exterior Zip-Track has its own warranty. For any issues, contact us via phone or our website. This warranty excludes conditions from accidents, misuse, or neglect. If there is any outstanding balance after the installation is complete, the warranty will be void. If a motor is charged with any charger other than the one provided by Shadeotech, the warranty will be void due to variations in wattage that may cause damage. Warranty does not cover damage caused by extreme weather or natural events.

**Trip Charge Policy** A trip charge starting at $125 will apply for all service visits, including warranty claims, non-warranty repairs, or adjustments caused by factors outside of Shadeotech's control. This includes, but is not limited to, issues resulting from user error, damage, third-party interference, environmental factors, or changes to the home that affect shade operation after installation. Warranty claims still require a technician visit to evaluate and resolve the issue, and the trip charge applies in all cases. If additional site visits are required for further measurements, consultations, or confirmation beyond the initial visit, a service fee will apply per visit. This includes revisits due to client-requested changes, access issues, or site unpreparedness. The customer is responsible for obtaining any required HOA approvals or permits. Shadeotech is not liable for violations or removal requests.

**High Ceiling(s)** Measuring high ceiling windows is challenging. Our technicians take utmost care during measurement, but a margin of error of ±1 inches might occur. Adjustments will be made during installation if necessary.

**Window Deviation and Workaround** Windows may deviate slightly, with differences up to 1 in. Our shades are precisely crafted; however, window deviations may cause a slight angle at the bottom. We recommend installing without spacers to minimize visibility of deviations, though spacers can be used to level the window if necessary. Shadeotech is not responsible for any inherent flaws in window construction.



**Gaps** Blinds and shades may have small gaps to prevent damage during operation. These gaps do not allow detailed visibility from outside but might show light and movement. For enhanced light control and privacy, you may opt to add a side channel track that gets installed on either side of the blinds or shades.

The client acknowledges that walls are not always perfectly straight. Shadeotech shades are cut by a precision machine and are perfectly straight when manufactured. If any slopes or gaps appear on any side after installation, it is due to wall irregularities and not a defect in the product. Shadeotech is not responsible for any aesthetic concerns caused by wall unevenness. For exterior screens if the surfaces where side tracks are installed are not straight, small gaps may appear along the edges. In such cases, we may use foam or filler to reduce visibility of gaps. These adjustments are functional solutions, but complete elimination of gaps cannot be guaranteed. Shadeotech is not responsible for aesthetic concerns arising from wall or surface irregularities.

**Client-Provided Measurements Disclaimer:** If the Customer chooses to provide their own measurements instead of having Shadeotech measure the windows, the Customer assumes full responsibility for the accuracy of all dimensions submitted for manufacturing. Shadeotech will manufacture products strictly according to the measurements provided by the Customer. Because all products are custom-made, Shadeotech is not responsible for errors, improper fit, or performance issues resulting from incorrect or incomplete measurements supplied by the Customer. If a remake, adjustment, or replacement is required due to measurement inaccuracies, the Customer agrees that all associated costs will be the Customer's responsibility. This includes, but is not limited to, remanufacturing fees, material costs, shipping, and additional service or installation charges.

**Fabric Wrapping Disclaimer** We do not recommend fabric wrapping the cassette or bottom rail. The client acknowledges that if dust or dirt gets into the crevices or if the tape wears off, it will not be covered by warranty. A replacement can be done at an additional charge.

**Electrical** Any electrical work required is the client's responsibility. Shadeotech is unable to perform any electrical work and is not liable for any actions or outcomes resulting from the work conducted by an electrician. All payments related to such services are the sole responsibility of the client.

**Installation and Site Preparation** The client is responsible for ensuring that the installation site is clear and ready for Shadeotech's employees and subcontractors to perform their work. This includes ensuring that the path to the installation area is unobstructed and that any furniture, valuables, or other items are moved out of the way prior to the scheduled installation time. Shadeotech and its employees are not permitted to move or handle any of the client's belongings. The client agrees that Shadeotech is not liable for any damages to the client's property, including but not limited to furniture, valuables, or any other items, resulting from the installation process. The client assumes full responsibility for any loss or damage that may occur due to the client's failure to adequately prepare the site. The client understands that during installation, walls, window trims, and window sills may incur damage. Shadeotech is not responsible for failures due to mounting into structurally unsound or non-standard surfaces.The client releases Shadeotech from liability, and Shadeotech is not responsible for any damage that may occur. Shadeotech shall not be liable for any damages, injuries, or losses arising from the installation, use, or operation of its products. The client assumes full responsibility for ensuring proper maintenance, use, and operation. Shadeotech makes no guarantees regarding installation in non-recommended settings and voids any warranty for installations that do not follow professional recommendations. If the client is not present for the scheduled installation, the Shadeotech team will wait for 15 minutes. After this period, the client will need to reschedule and pay an additional service charge. If blind removal is required before installation, the client acknowledges that there will be a fee for the removal and disposal.

1. **Definitions** "Company" refers to Shadeotech Inc. "Customer" means the purchaser of goods and/or services from the Company. "Goods" refer to all products sold, customized, and/or installed by the Company. "Terms" refer to the Terms and Conditions set forth in this agreement.
2. **Cancellation & Refunds** Once a deposit has been received and the order placed into production, the order is non-cancelable and non-refundable. Shadeotech reserves the right to reject any cancellation or modification request after order confirmation. If exceptions are made, additional charges may apply at Shadeotech's sole discretion.
3. **Ownership & Risk Transfer** Title to the Goods remains with Shadeotech until full payment is received. Risk of loss or damage to Goods passes to the Customer upon delivery or installation. Customers are responsible for safeguarding installed products from that moment forward.
4. **Photo Consent for Marketing** Customer acknowledges and agrees that Shadeotech may take before-and-after photographs of the installation site strictly for use in portfolio, training, and marketing purposes including social media. No personal information including names, addresses, or any identifying details will be disclosed. Customer may opt-out in writing before installation if they do not wish for photos of their property to be used.
5. **Final Customization Confirmation** All orders are custom-made. Once materials are approved and production begins, no changes may be made to design, fabric, mount type, or motorization. If the client is dissatisfied with their custom selection post-installation, modifications can be made for an additional charge. Shadeotech is not responsible for client remorse or preference change after manufacturing has begun.
6. **Inspection** Customer must inspect installed products immediately. Any issues or discrepancies must be reported to Shadeotech in writing within 24 hours of installation. After this window, all products will be deemed accepted in full working condition.
7. **Force Majeure** The Company shall not be liable for any failure to perform its obligations where such failure results from any cause beyond the Company's reasonable control, including but not limited to natural disasters, labor disputes, delays by suppliers, or government actions.
8. **Severability** If any provision of these Terms is held to be invalid or unenforceable, the remaining provisions shall remain in full force and effect.
9. **Waiver** Failure by the Company to enforce any provision of these Terms shall not be construed as a waiver of any provision or right.
10. **Governing Law** This agreement shall be governed by and construed in accordance with the laws of the State of Texas. Any disputes arising under this agreement shall be subject to the exclusive jurisdiction of the courts located in Texas.

Acknowledgment By signing below, I hereby acknowledge that I have read, understood, and agree to be bound by the above terms and conditions. I also confirm that I have reviewed the quote and all the provided information is accurate and correct.

| _____ | _____ |
|---|---|
| Full Name | Address of Installation Site |

Signature

Date